

Canadian History

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Source: *The Historical Journal*, Dec., 1971, Vol. 14, No. 4 (Dec., 1971), pp. 827-852

Published by: Cambridge University Press

Stable URL: <https://www.jstor.org/stable/2638109>

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REVIEW ARTICLE

CANADIAN HISTORY

It was to be expected that the Centenary Year and the high tensions of Canadian political life would result in a considerable volume of historical writing – and expectation has not been disappointed. A notable contribution has been made by the Centenary Series, a comprehensive history of the Dominion in seventeen volumes under the able editorship of Professors Donald Creighton and W. L. Morton. Eight volumes in the series have already been published, and the editors have both made contributions outside the series – Creighton in *The Road to Confederation*¹ and in *Canada's First Century*² and Morton in *The Kingdom of Canada*.³ So, although important volumes in the Centenary Series have yet to appear, it is not too early to attempt a general review of the new writing, especially as much important work has appeared outside the contexts of the series.

Guy Frégault is to write two of the expected volumes in the Centenary Series, and a general review of current writing is probably best begun by a consideration of the English translation of a work of which he published the original French version in 1955, *Canada, The War of the Conquest*.⁴ The weight of his contribution is emphasized by the knowledge that in 1961 he was appointed Deputy Minister for Cultural Affairs in Quebec and that he is now Special Adviser to the Prime Minister on Linguistic Policy and Commissioner General for Co-operation with Outside Governments. Although something of the panache of the original French version is lacking, the translation by Margaret Cameron is admirable, clear and balanced, with a literary quality of its own. The value of the translation, however, lies less in its literary merits than its making the theme which Frégault presents known outside French-speaking Canada. The only change from the original edition is the addition of notes, and these confirm (as was already evident) that this is a work of genuine historical scholarship, based upon an imposing array of documents, secondary authorities and periodicals.

Although the period covered is limited to the years of armed conflict, from 1754 to 1763, Frégault does not write mere military history; but the narratives of military events are in some ways the most stimulating and well-informed parts of the book. Of particular interest is the account of the capture of Quebec and the analysis of the defects of both Wolfe and Montcalm, an account which must be disconcerting to all who have been reared on the theme of the Victory on the Heights of Abraham, with the world's two most brilliant generals dying at the moment of decision. In Frégault's eyes Wolfe and Montcalm are equally incompetent; the true strategist throughout the war was Vaudreuil, the Governor with a Canadian background, who had married a Canadian and who 'thought Canadian'.

Frégault has long been known as a holder of the view that the 'conquest' of 1763 terminated the evolution of a society which had reached full normal development,

¹ Toronto: Macmillan, 1964.

² New York: St Martin's Press, 1970.

³ Toronto: McClelland & Stewart, 1963.

⁴ Montreal: Fides, 1955.

emphasizing that the death of this recognizably Canadian society is much more significant than the triumph of British imperial policy over French imperial policy. To some extent this is a projection from Gipson's re-assessment of the Seven Years' War and his conclusion that it must be called 'The Great War for the Empire' by any historian who seeks exact standards of terminology. Gipson insisted that the war could not be taken as part of a plot by British mercantilists to destroy a commercial rival, conquer Canada and the French West Indies and expel the French from India. The object, much more limited, was to afford protection to the British colonists from the aggressive arms of France. He agreed that the conquest of Canada opened up new vistas to the American settlers; indeed he developed that view at great length. But whereas Gipson is thinking in terms of the constitutional and military results of the removal of the French threat, Frégault maintains that the 'Canadian people' was broken in a decisive and systematic fashion, that the framework of the Canadian community was never re-built and (like Gipson) that the true victors were the American colonists because the victory opened to them the vast hinterland of the North American continent.

This, with the conviction that but for the conquest the continent would have been taken in possession by Canadians, has been derided as 'une construction d'esprit'. It rests on the assumption that pre-conquest Canada was a competent society which in its own right, not merely as an outpost of France, showed power to survive and to expand. It is an assumption which is hard to accept, and which Frégault's own work does little to support. His *François Bigot*⁵ makes it clear that he then accepted that Canada, as a French colony, was not a viable unit. There were indeed rich pickings, but the lamentable state of the *habitants* before and during the war emphasizes the fact that Canada was still dependent on annual food supplies from Europe, that there were wide gulfs between the administrators who profited from speculation and the *habitants* who suffered thereby, that Canada's military effort was paralysed by famine in 1758 and that French strategy and naval weakness played their parts in the outcome as much by failure to secure the arrival of a food convoy to relieve Canada's economy as by more positively military failure. Canada, dependent still on the fur trade for payment of administrative costs and necessary supplies, was ranked as of less value than Santo Domingo by the French Government; indeed it was regarded as valuable only when considered as a part of a planned French imperial policy based on the establishment of Louisiana and the maintenance of the West Indian colonies. For many years the unprofitable *ferme* of the revenues of Canada was made acceptable to speculators only because it was combined with the *ferme* of the West Indies, and it was assumed that Canada could only be maintained by getting control of the routes which brought the St Lawrence into conjuncture with the Caribbean. Marcel Giraud's *Histoire de la Louisiane Française*⁶ has so far only reached its third volume and the year 1720. But he has made abundantly clear the connexion between Canada and Louisiana and has shown that, even before John Law and the *Compagnie d'Occident* tried to knit the whole of France's imperial commerce together, Crozat and other progenitors of that *compagnie* had planned that the finances of Louisiana should be treated as a unit with those of the Canadian fur trade.

Canada, then, was still in the eighteenth century harassed by an unbalanced economy, dependent on a metropolitan market in which Canadian produce would not

⁵ Montreal: Fides, 1948.

⁶ Paris: Presses Universitaires, 1953-66.

pay for Canadian purchases; and Canada was part of a French strategy for control of the Ohio-Great Lakes-Mississippi water system, a strategy which English colonials and English statesmen alike accepted as a challenge and a threat. To the extent that Canada could only fulfil its role by a policy which would be lethal to the English settlements, a war for the preservation of the English colonies was a war for the annihilation of Canada; and so the war was accepted and fought by the Canadians, especially after the dispersal of the Acadians had shewn the possibilities inherent in defeat.

But the conquered Canadians were not dispersed; and the policy of the victorious British was not a policy of opening the hinterland of the continent to British settlers. Writing perhaps too close after the publication of Harlow's *Founding of the Second British Empire*,⁷ with its impressive array of evidence for British dissatisfaction with the old imperialism and for reluctance to accept new territorial commitments, Frégault is at odds with the tenor of the great Proclamation of 1763. Here the object, plainly set out, was to prevent the westward spread of settlement from the English colonies, and Frégault's approach becomes 'emotional' and subjective to the extent to which this basic point of policy is overlooked. The subjective quality of his work is less evident in the English translation than in the French original, perhaps because of the steady sobriety of the prose style. The translation, however, does not conceal the contrast between the treatment accorded to English commerce-raiding (which arouses high indignation) and to the atrocities committed by the Indian allies of the French in the course of the war. The massacres at Fort William Henry, the scalplings which preceded the capture of Oswego and the bloody raids which, like the English commerce-raiding, preceded the outbreak of war and which were part of a system designed to demoralize British America, are treated with a matter-of-fact realism which is in itself significant.

From the time when Champlain made his alliance with the Hurons, and went to war with them against the Iroquois, up to the time when de la Vérendrye and his sons went to war with the Sioux against the Crees, Canadians accepted involvement in Indian tribal wars as the condition on which they could penetrate the continent; and Indian alignments go far to explain the successes and the failures of the European nations in North America. The subject is a commonplace of Canadian history, with Iroquois opposition to the French as an obvious and constant theme. But a satisfying study of this subject as a whole has yet to appear although, as with Frégault, the need for Indian alliances and for acceptance of Indian practices is a common assumption. The publication of R. A. Goldstein's *French-Iroquois Diplomatic and Military Relations, 1609-1701*,⁸ does not fill the need. Much of the book covers the same ground as Professor W. J. Eccles in his volume in the Centenary Series, *Canada under Louis XIV, 1663-1701*,⁹ but with infinitely less scholarship and authority. Goldstein does indeed bring together much relevant material on this subject, but his book depends entirely on published material, it is long on detailed (and rather tedious) narrative and short on analysis and explanation, and the absence of any index must greatly limit its usefulness.

Whether the outcome of the war would have been different if the Iroquois had fought on the French side, so that 'France must chiefly ascribe the final overthrow of her magnificent scheme of colonization in the northern part of America to Iroquois hostility' (as L. H. Morgan declared as long ago as 1851 in the *League of the Iroquois*)

⁷ London: Longmans, 1952.

⁸ The Hague: Mouton, 1969.

⁹ Toronto: McClelland & Stewart, 1964.

must remain an open question. But, making all allowances for the fact that the evidence for forming a judgement comes almost entirely from European sources, the balance would seem to be swung by the strength and the weakness of the European contestants. Very much to the point for any discussion of the theme of the suppression of Canadian nationalism is the growing volume of evidence that, long before the end of hostilities, the fight had gone out of the French community as the great merchants found their paper discredited in France, the small merchants found their markets inaccessible and unbalanced and the *habitants* found their supplies interrupted. On the other side, the official French view was that colonies should be regarded primarily as trading establishments and that Canada was ill-equipped for that role.

The Canada which came under British rule was therefore a community which, whatever its potential national character and whatever its chances of survival or of development, was anxiously seeking a niche in a trading system which would give opportunities never offered by France. Much of the subsequent history of Canada is best treated from that point of view, developing from the basis that Canada's was a dependent economy (as most colonial economies have been). Canada after 1763 sought, first an economic status within a mercantilist British Empire, then adjustment to the situation created by an independent United States, followed by assertion of economic independence as Great Britain adopted free trade; and finally the creation of a continental economy capable of standing alongside the aggressive prosperity of the United States. The way in which the merchants, to Bigeaud's disgust, turned to England even before hostilities ceased, set the scene for the first phase of this story. The drawing power of the British market for lumber, wheat and sometimes for fur, has been shown in great detail by Fernand Ouellet in his *Histoire économique et sociale du Québec, 1760-1850*,¹⁰ a courageous and convincing effort in quantitative history.

But the problems of 'the conquest' were not all economic, certainly not for the British; and the constitutional and legalistic aspects of the period are admirably taken up by Professor Hilda Neatby in her *Quebec, the Revolutionary Age, 1760-1791*,¹¹ in the Centenary Series. Covering only thirty years until the Canada Act of 1791 split Quebec into Upper and Lower Canada while the French Revolution placed a changed situation before the Canadians, she has ample time to write in detail, and her delineations of personalities and descriptions of the social and cultural life of the province are clear and fascinating. Despite the non-survival of Carleton's personal papers he is made to emerge from his two periods as Governor-General as a shrewd administrator and politician with clear and comprehensible ideals and recognizable prejudices, and the characters of the other Governors are drawn equally clearly and attractively.

The overriding consideration was that for eleven of the thirty-one years under consideration Canada was involved in war, and that for the whole of the period she was under threat of war. The military Governors who struggled with the problems of integrating Canada into a British empire could never overlook her strategic importance in any American war. But the economic and constitutional problems were if anything more difficult than the military ones, and the military characters of the Governors did not shield them from involvement. In accepting the capitulation of Vaudreuil in 1760, Amherst granted freedom of worship, enjoyment of property and freedom from molestation. He did not grant the request that Canadian customary law should con-

¹⁰ Montreal: Fides, 1966.

¹¹ Toronto: McClelland & Stewart, 1966.

tinue; and when the Peace Treaty came to be signed in 1763 it only granted freedom of worship 'so far as the laws of Great Britain permit'. Nevertheless by the law of nations it was accepted that the great body of law (except that regulating the relations of the King with his New Subjects) would remain unchanged until it was specifically altered, and security of property implied the continuation of the laws for tenure and inheritance. The situation which faced Murray as the first Governor was inevitably confused. Confusion was further confounded by ignorance of the exact nature and content of the French legal system; by the natural desire of the 'Old Subjects' of the King to enjoy their own legal system, especially in commercial matters, as they moved into Canada; by lack of trained administrators; and by the promises which Murray had himself made in his efforts to win the submission of the Canadians. In 1760 he had promised to maintain the communities and private individuals 'in all their property, laws and customs'.

The great Proclamation of October 1763 not only set boundaries which made it clear that Britain did not wish to engulf the hinterland and which cut the Canadians of the Province of Quebec off from the 'Upper Country'; it also gave Canada its first British civil administration – and in so doing created endless legal problems. The outcome was not immediately obvious, for Murray took advantage of a latitude given by the Proclamation to dispense with an Assembly, nominated a Council on the assumption that Roman Catholics could not hold office, and in effect set up a form of Crown Colony government which proved mild and acceptable and which lasted for almost thirty years. But the Proclamation had promised English immigrants that they should have assemblies to make laws and to levy taxes, and that until the assemblies should prove workable they should enjoy 'the benefit of the laws of our realm of England'. These clauses raised the question whether English law was yet in force in Canada, and if so under what authority; and whether, if it was not, the King could sweep away the existing system and replace it by English law, merely by proclamation. Legal opinion ultimately supported the view that, having transferred legislative authority to the promised Assembly (as he was entitled to do), the King could only withdraw that power by Act of Parliament. Not only were Canadian laws and customs still valid (as Hillsborough declared in 1768), but the claim to change them by Council was *ultra vires* (as Mansfield declared in 1773). Murray, however, was untroubled by doubts; he used his Council to set up a system of law courts in which the Court of Common Pleas served Canadian interests; and his recall and suspension were due not to his inability to extend his policy of clemency to the Canadians, but to his quarrels with English merchants, offended by his tolerance for Canadians and Roman Catholics and anxious for more English law, for an elected Assembly and for access to the fur trade of the Upper Country.

Detailed, well-documented, understanding and most attractively written, the chapters on Murray are probably the best part of a book which demonstrates that close analysis of a constitutional problem does not have to be pompous or dull. The verdict on Murray, that it is unlikely that he would have been a great administrator under any conditions but that it is hard to wish that any other man had been called to govern Quebec at this time, reveals a balanced tolerance which admirably offsets the shrewd realism which can characterize the Canadian judicial system as one in which able men would be unwilling to bury their reputations but in which many men might be willing to bury their pasts. Emphasis is on the constitutional problems rather than on emotions, and when Carleton replaces Murray the same interests remain dominant.

Though Carleton came as Governor on a good understanding with the merchants

who had played a part in Murray's supersession, he soon fell out with them; indeed he had already become embroiled when, as Lieutenant-Governor pending Murray's termination, he had dealt with a revival of the notorious case of Fowler Walker's Ear. As the echoes of the Stamp Act rumbled through his Province and the English merchants clamoured for their known laws for debt and civil rights while protesting over customs, taxes and defence duties, Carleton saw his duty as the creation of a loyal Canadian populace. When the American colonists brought the war to Canada, in 1774, the *habitants* sold them supplies, refused military service and defied the leadership of both their priests and their *seigneurs*. Carleton was forced to evacuate Montreal, and Quebec was besieged throughout the winter – a siege hampered by such inadequate cannon that the total casualties in a major bombardment were one civilian and a turkey whose leg was broken! It was a ramshackle invasion; but it achieved much, and Carleton had clearly misjudged both the military and the civilian situations. His inactivity at a later stage, and his misjudgement of the support which would come from Canadians, laid the foundation for the failure of Burgoyne's expedition and for Burgoyne's surrender at Saratoga.

But Carleton, enjoying good relations with Bishop Briand and the Roman Catholic Church (as Murray had done), had great faith in the power of the Church and the *seigneurs* to bring the *habitants* to accept British rule. He argued that the English 'adventurers in trade' would soon desert the country and that the 'country must to the end of time be peopled by the Canadian race'. Canadian laws, with their emphasis on 'subordination from the first to the lowest', must therefore be codified and preserved. Determined that Canadians should remain French because he thought that the only alternative was that they should become Americans, Carleton overlooked the difficulties of codifying French law and overrode the opposition of his legal advisers and of most Englishmen, especially of Francis Maseres, his Attorney-General, who held strongly to the view that rational and humane laws would bring a rational and humane society, and that Canadian law and the influence of the Roman Catholic Church should both be curtailed severely. When eventually the British Government took the Canadian situation in hand and passed the Quebec Act in 1774, it had available a series of reports, and Maseres himself was then in London. So, however, was Carleton, and it is Professor Neatby's considered opinion that the Quebec Act was framed almost exclusively on the wishes of the Canadians as interpreted by Carleton – and that Carleton greatly over-simplified a complex situation.

The Quebec Act opened by extending the boundaries of the province so as to include the Ohio country, Illinois and Detroit, areas in which New York could not be expected to bring effective government but which the Atlantic colonies were reluctant to place under Quebec. This modification of the Proclamation of 1763 was followed by modification of the legal system set up by Murray as he misinterpreted that Proclamation. It was ordered that the laws of Canada should apply to all matters of property and civil rights, and that English law should apply in criminal cases. The rule pleased neither French nor English, for both groups would be subject to an alien system in some respects, and both systems of law badly needed reform. The English community in particular protested against the renunciation of *habeas corpus* and trial by jury in civil cases, and against acceptance of so ill-defined a body of law as Canadian law still was. Misgiving was increased when the Act declared that it was 'inexpedient' to establish a Legislative Assembly; it was indeed as unthinkable that an Assembly to represent only the minority of Protestants should be set up as that power should be handed over to the majority of Roman Catholics. But the provision that a Council might meet, with

the Governor's consent, to make ordinances and to deal with executive business, during the first four months of any year, did little to quiet opposition when it was realized that the Governor could suspend or remove councillors and that, following from the grant of freedom of worship and the setting up of a special oath for Roman Catholics, they might hold seats on the Council. They were, in any case, granted 'free exercise of the religion of the Church of Rome, subject to the King's supremacy', and tithes for the support of their clergy were enforceable by law. The comment that 'George III must somehow have convinced himself that his coronation oath did not include Quebec' seems fully justified.

The Quebec Act, Professor Neatby justly says, has been tormented into a pattern of nationalist motives alien to the time and to the men who framed it; for in 1774 nationalism was not yet a moral issue. The Act was pre-eminently a political move, made against the background of the Boston Tea Party and the Philadelphia Congress; and as a political move it must be taken in the context of the instructions to the Governor which accompanied it, and of the Governor's actions upon those instructions. The difficulty of making any absolute judgement upon the Act derives in large part from the fact that the instructions dictated a policy of steady Anglicization where the terms of the Act seemed Francophile; and that the Governor not only ignored his instructions but refused even to communicate them. His instructions would have required Carleton to warn his Council of the programme of legislation which lay ahead of them and would have made him move towards the introduction of English civil law, introducing the common law right of *habeas corpus* by ordinance. They would also have led to severe limitations on the Roman Catholic Church, whose priests and bishops would have been subordinated to the Governor and whose religious orders would have been reduced and ultimately dissolved. In ignoring his instructions Carleton failed to win the loyalty of the French, roused the fears of the English, and turned the Quebec Act into the basis for the 'System of the Generals' which he handed over to Haldimand in 1778.

Affable and sympathetic, Haldimand was also rigid and obstinate; and he took command as France joined in the American War. Mistrusting merchants, especially those engaged in the fur trade to the Western Posts which were to him primarily a problem of defence, he inevitably roused animosity as he also neglected instructions from London to end the system of an inner 'Privy' Council, to amend the system of law courts and to communicate instructions on a programme of legislation to his Council. He blocked innovation 'in the present critical state of the British Empire' and ran the Government of Canada on his personal authority as Governor. Germain however (the former Lord George Sackville, later Viscount Sackville) as Secretary of State insisted in 1781 that Haldimand divulge his instructions to his Council. Peace, and the handing over of the Ohio country to the United States, with the problems created by the new western frontier and settlement of the Loyalists, brought many difficulties for Haldimand. But peace also removed some of the pressures, and before he retired in 1784 Haldimand had permitted his Council to debate the need for *habeas corpus*; though he so managed affairs that the debate was not public and that the official party voted for full maintenance of the Quebec Act, by which the Canadians would soon become 'indissolubly incorporated into the British Nation'. But 'innovation' got a great impetus as Haldimand handed over authority to Henry Hamilton, Lieutenant-Governor and President of Council since 1782. The resignation of Bishop Briand, the difficulty of appointing a successor and of recruiting Roman Catholic clergy without reviving the connexion with France, led naturally to French Canadians

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joining the English in demands for reforms and for a legislative assembly; and Hamilton moved with the tide, communicating his instructions to his Council, opening afresh the whole question of the validity of the customs and usages of Canada and granting the right to trial by jury in commercial cases and in torts – a right which the judges steadily refused to acknowledge.

Hamilton's dismissal in 1785 was in large part due to Haldimand's influence; but it was Carleton, now Lord Dorchester, who returned for a second term as Governor. His mandate covered the whole of British North America, and he brought with him as Chief Justice the American Loyalist William Smith, a parliamentarian where Dorchester was authoritarian, but equally convinced of the importance of monarchy and aristocracy and of the need for a comprehensive system in place of a diversity of local institutions. Smith's Grand Design for British North America was based on a federal system, of which a consequence would be the steady spread of English law and the creation of conditions acceptable to the Loyalists: he regarded the Quebec Act as a temporary measure, and he ran into opposition as he sponsored a Bill to make the use of English law compulsory where both parties were English. Deep issues were involved – the personality of English law as against the territoriality of French law. The first open debate in the Canadian legislature was marked by a speech in opposition to Smith, from the Attorney-General, which lasted from 10.30 a.m. to 4.45 p.m. ! The resultant investigation into the judicial system revealed great confusion and uncertainty, especially where mercantile disputes underlined the ineptitudes of the 'custom of Paris' and of the 'code marchand'; and though Dorchester went some way towards meeting the merchants' demands when he relaxed restrictions on shipping on the Great Lakes, the increasingly important combinations of merchants were out of sympathy with government. They were anxious to keep furs flowing down the St Lawrence instead of down the Ohio, and they were greatly increasing supplies as they pushed into Athabasca and formed themselves into the magnificent Northwest Company of Montreal. But a historian of the fur trade cannot follow Professor Neatby in her oversimplified assertion that the merchants did not share Smith's views of continental expansion from Canada. In so far as those views were legalistic, the views of a Loyalist Chief Justice with freehold tenure, a landed aristocracy and Loyalist settlement in view, Smith was out of sympathy with the merchants. But in so far as his object was to raise a barrier to American expansion and to maintain that the United States had no claims beyond the Mississippi while the United Kingdom had inherited from France claims which spread to the Rockies and beyond, he was giving theoretical form to the intensely practical needs of the merchants. For the Treaty of Paris had ceded the Western Posts to the United States and had placed in jeopardy the life-line of the western trade, control of the route from Lake Superior to Rainy Lake, Lake Winnipeg and the Saskatchewan as it climbed the Grand Portage and Pigeon River from Kaministiquia to reach the upper country. The Northwest Company, as re-formed in 1784, pressed hard in London and in Quebec for retention of the posts, for British expansion into the west and for the discovery of routes across the northlands to the Pacific.

But Smith and Dorchester were, in their different ways, indeed out of sympathy with the merchants; and the British Government, with Sydney as Secretary of State, taken up with the problems of Quebec rather than with the north-west, shelved the whole problem despite pressures which led to a series of parliamentary debates. The insanity of George III induced further delay, and when Sydney gave way to William Grenville in 1789 it had become clear that the French '*Vrais Patriotes*' regarded their laws of real property as guaranteed for ever by perpetual edict but were prepared to

accept a legislative assembly as a guarantee of their claims and of the position of their church while the English merchants and the Loyalists sought English law and an assembly as a means to introduce change; a strongly entrenched body of administrators, led by James Monk as Attorney-General, was convinced that 'A house of Assembly, unlimited in its power, unsecured to the Protestant interest and the King's old subjects, would be a real curse on the colony and what Great Britain ought never to grant'.

Grenville was at the same time convinced that the legitimate needs of the Loyalists overrode other considerations, and of the wisdom of anticipating demands. But he overruled Smith's proposals for a federal constitution with an anti-American role and in the Constitutional Act of 1791, as it was finally passed, divided Canada into two provinces, each with its elected assembly, its appointed second chamber and its executive council. The Quebec Act remained in force except in so far as it was specifically superseded, and so the merchants of Lower Canada remained under clear disadvantages and subject to a French-originated legal system and a French-dominated assembly. The outcome of the 1791 Act was to give French Canada a national form at the same time as the revolution in France was giving French nationalism a new image – an image which was in some respects not attractive to Canadians but which was certainly clearer in its outlines.

Professor Neatby, therefore, in concluding that the whole history of the period between the conquest and the Constitutional Act had led up to the evocation of a French-Canadian nationalism is, by implication and to a large extent, in opposition to the thesis that the War of Conquest stifled an existent nation. By implication and to a large extent; not explicitly and completely. But in her detailed and understanding account of the actual events of the period she creates a strong confidence in her knowledge, and in her dispassionate use of that knowledge.

Weaving in and out of the general narrative of the settlement is the problem of the Jesuit estates, typical of many of the issues of the period. For Amherst had been granted the Jesuit estates in Canada as a reward for his success in the war; and although the Articles for the Capitulation of Quebec conceded safeguards to all religious persons and to the houses of the clergy and the monasteries, the more definitive Capitulation of Montreal, ending French resistance, while granting to the Jesuits the right to depart for France and in so doing to sell their estates and moveables in the colony and to take the produce to France, and to retain (together with other priests and communities) their estates and moveables in the colony, nevertheless refused pending the royal pleasure to grant to them the right to continue in their constitutions and privileges, to nominate to curacies and missions and to be exempt from lodging military forces. A complex situation was further complicated when the order was dissolved in France in 1764 and when it was suppressed by Papal Brief in 1773.

In writing of *The Jesuits' Estates Question, 1760–1888*,¹² R. C. Dalton is to a recognizable extent at the mercy of his subject. For though the questions were not solved (if then) until the Act of Settlement of 1888, the interest in the Jesuit estates is not a continuous one. But the size of the estates made the problem always a potentially engrossing issue; for the Church in French Canada had acquired ownership of over a quarter of the lands granted away before the conquest (2,106,039 arpents as against less than 6,000,000 granted to the laity), and the Jesuit order had been granted 880,000 arpents, more than a third of the total grant to the Church. Many of the legal arguments over the rights of the Roman Catholic Church under the terms of the conquest

¹² Toronto: University of Toronto Press, 1968.

are aptly illustrated by the frustrations which attended upon Amherst's efforts to press his claims, with the Quebec Act excepting the religious orders and communities from the guarantee of their property and possessions, with his instructions ordering Carleton 'that the Society of Jesus be suppressed and dissolved and no longer continued, as a body corporate and politic', and with Carleton evading these instructions together with so much besides. He evaded also orders that a proper grant from the estates should be made to Amherst, for he held that the estates should be put to public use and he favoured a general request that education should be helped since education had been one of the original purposes of the grants of land. The end of what may be called the first story of the estates comes with the death of the first Lord Amherst in 1797, an Order-in-Council for a grant to his heir in 1799, the death of the last of the old Canadian Jesuits in 1800, and the division of Canada into two provinces by the Constitutional Act.

By the time that the second Lord Amherst had been granted a life pension in lieu of the estates, in 1803, emphasis was heavily on the educational issue, with a growing revelation of feeling that education in Lower Canada should be on sectarian lines and that English Protestant establishments there should be closely watched. But by the time of the Durham Report, although the revenues from the estates had been ascribed to education from 1831, it could only be expected that about £5,000 a year would be produced while at least £35,000 a year was needed. Buller suggested that the Clergy Reserves should be drawn upon to supply the deficit. But simply from the point of view of the Jesuit estates, not from that of educational development in Canada, the issue was complicated by the return of the Order to Canada in 1842 and by moves to make the Order responsible for a university which would combat the advance of English-speaking Protestantism.

The terminal point in this phase of the history of the estates came when, in 1846, the Roman Catholic bishops' request that the estates should be placed under their control was refused and the revenues were ordered to be used only for the benefit of Lower Canada (but not exclusively for Roman Catholics) and when, in 1856, the revenues from the estates and from other funds were combined in the Lower Canada Education Investment Fund and the Lower Canada Superior Education Income Fund on non-sectarian lines. In the meantime the Jesuits had set up their Collège Sainte Marie at Montreal and had achieved the development of a law school there, and the legal incorporation of the college in 1852 despite protests from George Brown and others anxious for non-sectarian schools and for the separation of church from state. For Canada the overriding problem in the first instance proved to be control of the Roman Catholic educational system in Lower Canada; a non-sectarian system would be (as indeed it has proved to be) a major issue of federal authority. As the Seminary of Quebec achieved university status as Laval University in 1853 there was hope that Collège Sainte Marie, and other colleges, would affiliate and would give Laval degrees. But behind inevitable difficulties over curricula, examinations and control, lay a story of 'miserable jealousy' between Quebec and Montreal, of a greater sense of urgency at Montreal because of the lure of the degree-giving power of McGill, and of the Ultramontanism which dictated that the final word must lie with the Prefect of the Propaganda in Rome. The obstacles to the establishment of a Roman Catholic university at Montreal were such that a plea that the secular power should authorize Collège Sainte Marie to give degrees was vetoed by the Papacy in 1872, and Bishop Bourget of Montreal resigned in 1876 in protest against a papal ruling that a branch of Laval should be

set up at Montreal, while the Jesuits rejected the terms under which Collège Sainte Marie would be placed under Laval.

With the rehabilitation of the Order, ownership of the estates and revindication of the rights of the Jesuits became an active question, with the bishops divided and the Archbishop of Quebec leading opposition to Jesuit claims. There was good reason to fear that the Church as a whole would lose the support which it got from government sources if the Jesuit claims for recovery were pressed too hard. As Confederation, and the departure of the English garrison which had been stationed in the Jesuit College at Quebec, opened new possibilities of recovery and indemnity, the dispute became more insoluble, with the provincial government and the Congregation for the Propaganda in Rome on the whole supporting the Archbishop and Laval, as against the Jesuit claims. The turning point came when, in 1884, the Archbishop of Quebec was empowered by the papacy to conduct negotiations with the Government about the estates, the ultimate disposition of whatever might be secured being reserved to the Pope himself, since the Pope thought it reasonable that the order should receive some compensation. As yet the provincial government had not admitted liability to indemnify anyone; but discussion continued, largely on the details of suggestions that the Church should renounce claims to the lands if the Government would capitalize the part of the funds devoted to Roman Catholic education according to the last census and distribute it to various named institutions.

Then, in 1887, with the provincial government of Mercier, himself a graduate of Collège Sainte Marie, riding the crest of French-Canadian nationalist feeling after the *métis* rebellion, Batoche and the execution of Riel, play swung in favour of the Jesuits. Their rights were confirmed by Papal Bull, including the right to grant degrees; the order was legally incorporated despite hesitations and opposition from the bishops. There followed a visit to Rome of the Lieutenant-Governor, newly retired with that object in view, R. Masson, and then of Mercier himself; at the end of a considerable subsequent correspondence the Papacy empowered the Jesuits to sell the estates and the Government agreed to buy for \$460,000 without acknowledging anything more than the moral rights of the order. The compensation was to be spent in the province, the Jesuits were to renounce all further claims except to the common of Laprairie as a token, and with the reservation of \$60,000 for Protestant educational interests, the Pope was to allocate the distribution of the compensation.

For ecclesiastical reasons it had become necessary that the Papacy should play an important part in these final negotiations, and in the debate on the Act of Settlement Mercier felt called on to deny that the authority of the legislature was to be vacated in the interests of a foreign power. But the high feeling generated in the passage of the Act arose not from this consideration but from the possibility that the Dominion Government might disallow an Act of the provincial legislatures. By an overwhelming majority the Dominion Government decided not to exercise the power to disallow. But the strife which arose over this issue, with arguments that the Act recognized the sovereignty of the Pope in part of Canada and that the French nationality and the Roman Catholic Church must be completely submerged in order that a unified Canada might develop, contributed much to the racial and religious cleavage which threatened the newly-created Dominion.

It is a long haul from a summary of the pre-conquest grants to the Jesuits and Amherst's efforts to secure his promised reward up to the educational settlement and the divisions within the Dominion; and the single issue of the estates does not provide more than an artificial continuity. But in its own right the long controversy has a

great interest, and in brief compass but with full documentation Dr Dalton has followed the story through in such a way that this particular issue can be taken (as it should be) as illustrative of the historical processes which went to the making of the Dominion and of the unresolved issues which the Dominion inherited.

The old Upper Country receives scant treatment in the writing which has greeted the Centenary; but the *Fur Trade and the Northwest to 1857* (by the present writer)¹³ finds its place in the Centenary Series, and the admirable bibliographical study of the *French and British in the Old Northwest* by H. P. Beers¹⁴ should be a great aid to research workers at all levels. This book has been available since 1964, reviewing the archive and manuscript sources in Canada and the United States (though not the main depositories in France and Great Britain). But it has been little used, and little quoted; indeed, most recent writing on the Northwest has been secondary and derivative, drawing little from new source material.

Something of an exception to this generalization must be made for the papers of the 1965 North American Fur Trade Conference, published by the Minnesota Historical Society under the title *Aspects of the Fur Trade*.¹⁵ Here Dale Morgan's essay on 'The Fur Trade and its Historians' and W. L. Morton's on 'The Northwest Company, pedlars extraordinary' are both valuable works of bibliography, while K. G. Davies' account of the merger of the Northwest Company and the Hudson's Bay Company will prove to be definitive. Different altogether in quality and approach, almost needlessly imaginative, Eric Ross's *Beyond the River and the Bay*¹⁶ is yet based on a wide use of source material, much of it unprinted. It takes the form of an imaginary account of the Northwest in 1811 by an imaginary settler, Ian Robertson, based on an imaginary diary. The maps (as should be expected when a professor of geography is the author) are clear and good, and the result is more factual and informative than the would-be romantic approach would lead one to expect. It is, however, strange that Professor Ross should completely ignore the voluminous diary and correspondence of Colin Robertson who, albeit a few years later than 1811, would fill the role of his imaginary traveller to perfection and who poured out the views and information required in copious quantities.

In the same *genre*, but making no pretence to originality save in that the author is relying on his own experiences as a traveller, is E. W. Morse's *The Fur Trade Canoe Routes of Canada, then and now*.¹⁷ This is a work sponsored by the National Historic Sites Service, aimed at emphasizing the geographical factors involved in the opening up of the Northwest, and it certainly makes a serious contribution to an understanding of the early history of the western provinces of the Dominion. Less historical, not so well illustrated, but more vigorously and attractively written, Hugh MacLennan's *Seven Rivers of Canada*¹⁸ is in effect a subjective reaction to the Canadian scene, particularly to the seven rivers which have played so important a part in the development of the country. *The Seven Rivers* is good reading, and there is evidence of a strong sense of history as the St Lawrence, the Mackenzie, Red River, Ottawa River, St John River, the Saskatchewan and the Frazer are passed under review.

Carl P. Russell's *Firearms, Traps and Tools of the Mountain Men*,¹⁹ by contrast, embodies the result of a lifetime of meticulous research, and is a mine of detailed information on the equipment of both Northwesters and Hudson's Bay men; indeed of

¹³ Toronto: McClelland & Stewart, 1967.

¹⁴ Detroit: Wayne State University Press, 1964.

¹⁵ R. G. Gilman (ed.), St. Paul: Minnesota Historical Society, 1967.

¹⁶ Toronto: University Press, 1970.

¹⁷ Ottawa: Queen's Printer, 1969.

¹⁸ Toronto: Macmillan, 1963.

¹⁹ New York: Knopf, 1967.

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and gave a bicameral legislature to each province, had set going something which was far from democratic and which easily became oligarchic. The elected Legislative Assembly of Upper Canada was to consist of sixteen members and was based on a 40s. freehold franchise in rural areas and a £5 freehold or £10 rental in the towns; the Legislative Council, however, was to consist of at least seven members who were to be nominated by the Lieutenant-Governor and were to hold office for life. Provision was made for the creation of hereditary titles which would carry the right to a seat on the Council, but this was never implemented and was symptomatic of the many uncertainties involved. For alongside the Legislative Assembly and the Legislative Council there was also to be an Executive Council; and though this council was given certain powers (especially in dealing with Clergy Reserves) its nature, membership, duties or relations with the Governor and with the two legislative bodies were not defined. Each of the legislative bodies was given an absolute veto, and no procedure was outlined for occasions when Legislative Council and Legislative Assembly differed, while the Executive Council was clearly accepted as an advisory body answerable to the Lieutenant-Governor, not to the legislature.

This was not an auspicious background for the development of responsible government, especially in Upper Canada. Not only was this a frontier province, with potentially difficult elements enhanced by the bringing of assisted immigrants whose markedly Irish, Scottish, English or even American characteristics persisted as they settled in coherent groups. The pattern of settlement was chequered according to the theories of the day and by the reservation of areas of Crown Lands and of Clergy Reserves, and the spread of settlement to the western lands of the province took place against a rising fear of creeping Americanization and of abandonment by the United Kingdom. The impact on the colony of Robert Gourlay, with his ability to focus attention on the connivance and mismanagement which were inevitable features of territorial expansion in such circumstances, brought a polarization of opinions and of loyalties, and the dangers of bankruptcy in 1822 brought proposals for union with Lower Canada and a greater share in external trade and in customs revenue. Clearly set out and well developed, these themes are not novel; but they are well placed in their contexts and they emphasize the editorial problem which arises from a regional approach to Canadian history. For it was to a large extent the political deadlock in Lower Canada which brought forward the plans for union and which, in turn, brought those plans to frustration; and although from a provincial point of view Professor Craig may be justified in stating that one of the features of the growing colonial society was the end of Montreal's fur-trading empire in 1821, from the point of view of the Northwest and of Canada as a whole the absorption of the great North West Company of Montreal by the Hudson's Bay Company in that year marked the beginning of the reign of George Simpson, the 'Little Emperor' of the fur trade, under whose relentless direction Montreal became the centre of a fur-trade empire which dominated the western lands, the Northwest and the Pacific coast.

The Canada Company which emerged in 1824 has not yet been treated in a detailed and exhaustive study, and Professor Craig does not attempt to fill the gap. He does, however, bring to the subject a comprehensive knowledge which is unrivalled, and his bibliographical note on settlement and land policy is invaluable. The new policy allowed rapid and consolidated development in place of the 'chequered plan' which had been dictated by the reservation of Crown Lands and Clergy Reserves, and it brought the ideas of Wakefield to Canada. But the influence of John Strachan and of his pupil John Beverley Robinson, standing at the centre of the emergent group of the

Family Compact, secured the placing of the Clergy Reserves under a board which was entirely Anglican, the withdrawal of all Clergy Reserves land from the vast area granted to the Canada Company, and the passing of legislation which would permit sales of Clergy Reserves land. The close correlation between land settlement, patronage and the Family Compact inevitably aroused bitter opposition from the growing body of reformers, especially from William Lyon Mackenzie.

The 'mania for canalling', the Bank of Upper Canada and comparisons with conditions in the expanding Middle West, all drove Mackenzie to fierce denunciation of the Compact. The Compact has always been known, with justice, as an ultra-British group, aristocratic by instinct if not by descent, anti-American, and committed to the concept of an established church; here it takes shape, not as a group of parasites and plunderers (as Mackenzie saw it) but as a circle of convinced loyalists whose loyalty focused as much on the problems of education and religion as on land and office. It was, indeed, the claim of the Compact that the revenues from the Clergy Reserves should be allocated only to the Church of England (to the exclusion even of the Church of Scotland) which led to the setting up of a Select Committee of the House of Commons to enquire into the government of the Canadas in 1828; and that committee recommended that the proceeds from the Clergy Reserves should be divided between all Protestant denominations and that the university which was then under discussion (as Bathurst's charter to King's College had led, instead, to the establishment of Upper Canada College and to proposals for a secular university) should be broad-based and nondenominational. The reformers lost the control which they had won in 1828 at the election of 1829; but with the Reform Bill of 1832 fore-shadowing the end of High Church Toryism in England and with Ryerson organizing the Methodists as a political group and Robert Baldwin drumming the conviction that all would fall into order once the Executive Council had been made subordinate to the legislature, the scene was set for the reformers' victory in the election of 1834, the establishment of the Committee on Grievances and the flood of petitions for a written constitution and for the control of Crown patronage.

As the weight of complaints mounted, Glenelg replaced Colborne as Lieutenant-Governor by Francis Bond Head; and however much one may sympathize with Head as a person, his appointment at this juncture is so ludicrously inept that one cannot help wondering whether the summons to him to abandon his poorhouse and to undertake a task for which he had no experience or other qualification may not have been the outcome of an incredible error. Head himself initially declined the post and was 'altogether at a loss to conceive why this appointment should have been offered to me'. Farcical though the conclusion might be, the possibility that Glenelg intended to appoint Edmund Walker Head (who would have been appropriate) should not be passed over in complete silence. In fairness it must be said that the articles on the Head appointment are fully set out in the bibliography; but as the Legislative Assembly tried to use its financial power to curb the executive, Baldwin voiced the claims to responsible government, and Mackenzie led the radical reformers into a Pan-American nationalist movement, the character and activities of this extraordinary Lieutenant-Governor were of prime importance.

The rebellion of 1837 proved an utter failure in Upper Canada, as in Lower. It led to the Durham mission and the Durham Report. But although Robert Baldwin put his views on responsible government to Durham, and the principle was accepted in the Report save for the reserved clauses (which were considerable), and though the reformers accepted the Report, especially in its strictures on the Family Compact and

in its opposition to devoting the Clergy Reserves to Anglican uses, the Report was predominantly concerned with Lower Canada, not with Upper. Durham's object in recommending union of the two provinces was to end the French 'vain hopes of nationality', and he lacked personal knowledge of Upper Canada, where he had spent only five days, four of them at Niagara and one at York. The Tory opponents of the Durham proposals were easily able to ridicule the inaccuracies of the Report, and did so. But the reformers accepted Durham and, perhaps more important, so did the Governors. Responsible government was in effect conceded under Sydenham, and the close interplay between French-Canadian 'patriotism', Lower Canadian Liberalism, Upper Canadian Toryism and Upper Canadian Reform began. Durham had abandoned his initial feeling for a solution by federation of all the British North-American colonies; as a first step the difficulties of achieving a common government for English-speaking and French-speaking Canadians must be overcome. For Upper Canada there was the fact that the extremes both of Toryism and of Radicalism were discredited, that the Union carried hopes of financial stability, and that the people of Upper Canada had shown that they were neither British nor American; a national character was in process of formation.

In covering such well-tilled ground in a series which is aimed at a wide reading public, Professor Craig mounts few challenges to accepted views. But it is good to have the comprehensive story presented in so masterful and acceptable a manner, and the notes and the bibliographies emphasize the knowledge of the period which is evident from the text.

Professor MacNutt's volume on *The Atlantic Provinces* has already been reviewed in the *Journal* (vol. xi, no. 2, pp. 380-2). Admirable in its factual approach, it seems likely to be of value chiefly as a work of reference. In the end it proves impossible to impose any unity of narrative upon the five different histories with which the volume deals. 'Geography and history', Professor MacNutt concludes, 'had conspired to deny to the Atlantic Provinces the framework of any kind of unity from which strong leadership could emerge.' Nevertheless the difficulties arising from the simple union of the two Canadas and the persistence of the basic North American problem – that, if British North America was to resist absorption by the United States, Canada must achieve a continental stature – ensured that the Atlantic Provinces were never lost sight of as the debate on Confederation gathered pace.

Yet, despite the fact that the Charlottetown Conference was called in, and largely by, the Atlantic Provinces, the driving force of the movement from Union to Federation came from Canada West. Professor Careless's volume on *The Union of the Canadas, 1841-1847*,²⁴ in the Centenary Series, therefore leads the narrative through the difficult years in which British Governors strove to achieve effective government in the face of the three major factors in the Canadian situation – the fact of nationalist sectionalism, the creed of responsible government and the unequal responses of the two sectional communities to the demands for reform or for conservatism. With only sixteen years to cover in some 220 pages, Professor Careless is able to give meaning to what might easily be no more than a blow-by-blow account of political in-fighting; but his study of *Brown of the Globe and Canada* had already shown that this might confidently be expected of him.

It requires very little hindsight to assume that Durham had overlooked the reality of French-Canadian nationalism; but the census figures for 1841 make the point clear;

²⁴ Toronto: McClelland & Stewart, 1968.

indeed, Professor Careless adds that Durham's disparaging remarks played their part in stimulating the national pride which became so notable a feature of Canadian life. But there were many things which bound the two provinces together. In Canada West wheat and lumber were the export staples which gave opportunities to emergent capitalism. They had their counterparts in Canada East, where there was a marked decline in seigneurial farming. In both provinces middle-class business men were achieving economic and political importance – at the expense of backwoods egalitarianism in the west, of French-Canadian agrarianism in the east. The alliance of Baldwin and La Fontaine, however, which runs through the volume as a continuous theme from their victory in the 1841 election onwards, was less dependent on such socio-economic factors than upon their common adherence to the doctrine of responsible government and their common support of reformist policies. Full acceptance of responsible government, in principle, was not achieved until the governorship of Elgin, in the aftermath of the election of 1847. But despite a series of equivocal dispatches from Russell, and his own desire to manage an executive system which should be 'responsive' rather than 'responsible', Sydenham had in effect accepted the practice, if not the principle. As Bagot succeeded Sydenham, with hopes of concentrating on practical measures and on 'harmony' rather than on doctrine, he found that he could only bring into the Government the strength of the French nationalists who had triumphed in eastern Canada under La Fontaine if he would also include La Fontaine's ally Robert Baldwin and the reformist and responsible government party from Canada West.

So Metcalfe, taking office on the death of Bagot in 1843, was faced by a reform ministry led by La Fontaine and Baldwin, and when the inevitable clash came, over the control of government patronage, his attempts to drive a wedge into the coalition failed. In extremes, he prorogued the legislature and fell back on a coalition between the Anglophile progressive conservative William Draper and 'le vénérable' French-Canadian nationalist Denis-Benjamin Viger. Draper shared the Governor's view that responsibility of the Government to the elected Assembly was desirable but that the patronage of the Crown should not be surrendered to the Assembly for the purchase of parliamentary support; Viger still hoped to perpetuate a separate French-Canadian nation and was anxious to make it evident that the Governor would get better support from a French nationalist *bloc* than from a coalition in which La Fontaine's power was dependent on his ability to demonstrate the value of political co-operation with Baldwin within the contexts of a union of the two provinces.

The Draper-Viger ministry secured some added strength from Draper's ability to win support from Egerton Ryerson. But Francis Hincks founded the *Montreal Pilot* and George Brown brought out the *Toronto Globe* to campaign for reform and responsible government; and the election of 1844, following months of crisis and provisional rule, was bitterly fought both in the press and on the hustings. In Canada West the Draper Conservatives won a victory; but La Fontaine triumphed over Viger in Canada East and so Draper and La Fontaine were driven together as Baldwin tried to restore the Liberal image in Canada West, proposals for a Protestant but non-sectarian university split Draper's Tory supporters, and a new element was injected into the situation with the doctrine of the double majority. This thesis would have required the Government of the Union to be based on a majority within each province and would have resulted, not in party government according to divisions over political affiliation, but in rule through two national *blocs*. It would have made coalition possible, and even necessary, between reformers in one province and conservatives in the

other (for example, between La Fontaine and Draper) and would have obviated the need for reform or conservatism to triumph in both provinces if a ministry was to be made responsible to the legislature and so to the electorate. While not denying the doctrine of the double majority, La Fontaine held to his alliance with Baldwin and the reformers of Canada West, and he bargained with Draper for complete replacement of Viger's supporters by his own men in the ministry in recognition of their victory in the election in Canada East.

No decision had been reached by 1845, the retirement of Metcalfe, the Oregon Boundary crisis and the great misgivings which came to Canada with the end of the Corn Laws and with the spurt in Irish immigration which followed from the Great Famine. Prosperity based on wheat and lumber, with developments in roads, railways and canals, gave place to recession and misgivings as it became clear that Britain was set to achieve free trade, and that free trade was closely allied to anti-imperialism. As Elgin took up his appointment as Governor-General the Government faced a budgetary deficit and the Loyalist-Conservatives were a profoundly disillusioned party.

The four-volume edition of the Elgin-Grey correspondence, published as long ago as 1937, has made it clear beyond doubt that Elgin was to a large extent personally responsible for the full vindication of the principle of responsible government in Canada, and Professor Careless makes no new departure on this issue. The collapse of the British market for Canada's exports made the late 1840s a particularly difficult time for Elgin to achieve his aim of developing the moral and personal influence of the Governor to make up for the loss of power and patronage entailed by responsible government. But although he saw riots, the burning down of the Parliament buildings and the great Annexationist Manifesto developing out of his acceptance of La Fontaine and Baldwin in 1847, he carried his convictions into practice. The clash between Governor and Loyalist-Conservatives came to a head over La Fontaine's support for payment for losses incurred in Lower Canada during the 1837 rebellion and Elgin's acceptance of the Rebellion Losses Bill as the wish of a properly-elected legislature. In the face of considerable personal danger Elgin demonstrated that he accepted the full implications of responsible government, and in so doing he showed French Canadians that the Union offered them equality and the prospect of power. Managing the episode with skill and power, Professor Careless leaves no doubt that the Rebellion Losses Bill marks the end of an era; it not only confirmed the stature of the Governor, it also brought out the French-Canadians in support of La Fontaine and the Union, alienating them from Papineau, who had returned to active politics to undermine the Union.

The constitutional stability which ensued was reflected in economic growth and territorial expansion as a wheat boom (partly caused by the Crimean War and the exclusion of Russian wheat from Britain), a gold rush and railway development accompanied a revival in the lumber trade. The United Kingdom remained Canada's chief market but the United States, with 9,000 miles of railway as against a mere 66 miles in Canada in 1853, was a constant and attractive rival. Elgin's intervention, and his success in securing the Reciprocity Treaty of 1854, did as much to stem the move for Annexation as did his constitutional activity. But the general prosperity and the railway boom which followed from Reciprocity had collapsed in debts and insolvency by 1857, and Canada then moved to a policy of protective tariffs in a search for revenue and for stability.

This was a policy which ultimately provided protection for the development of Canadian manufacturers, to supplement and replace the primary export-staples. But in 1857, despite a banking boom, a growth in steam-driven machinery, the beginnings

of an iron industry and even the production of the first Massey mowing machine, Canada was still in the early stages of an emergent economy. Much more pregnant than these developments (which are handled with skilful brevity) was the fact that Galt's tariffs of 1859 involved him in telling Newcastle, then Colonial Secretary, that 'It is, therefore, the duty of the present Government distinctly to affirm the right of the Canadian Legislature to adjust the taxation of the people in the way they deem best, even if it should unfortunately happen to meet the disapproval of the Imperial Ministry'. This was at once a full declaration of the responsibility of the Canadian Government to its electorate, a vindication of Canadian independence and a reversal of the entrenched clauses of the Durham Report and of the Act of Union's decree that 'it is necessary for the general benefit of the Empire that such power of regulation of commerce should continue to be exercised by Her Majesty and the Parliament of Great Britain and Ireland'. It is a pity that the limitation of the volume to 1857 should preclude from treatment these consequences of the financial crisis which followed from the bursting of the railway bubble.

Galt had defined the conditions within which the interplay of national and political affiliations would be worked out. The abolition of seigneurial dues in 1854, the establishment of a non-sectarian university at Toronto, the use of French as an official language and the increasing involvement of French Canadians in management and finance, these things acquire meaning only within the contexts of a Canada which claims independence and which, as Galt asserted, must if necessary use her freedom to expand across the continent if she was to resist the lure of annexation to the United States. But in the decade of Elgin's power this lay in the future. The new forces of disruption, on which Careless's last three chapters are spent, concentrated their efforts against the reformist programme advocated by Baldwin and La Fontaine and accepted by Elgin. Led by William McDougall, the Clear Grits derived much of their strength from the prairie democracy of the west, much of their doctrines from British liberalism and from American republicanism. Suspected by the French, rejected alike by the Tories and by the reformers, they proclaimed a programme in which all Protestant denominations were to share in revenue from sales of the Clergy Reserves, in which biennial parliaments were to be elected by secret ballot and with no property qualification for members, external policy was to be controlled by Canada herself, and responsible government was to be based on a principle of 'representation by population'. This system would give to the larger and more rapidly increasing population of Canada West (952,000 at the 1851-2 census, as against the 890,000 of Canada East) the predominance which was denied by the sectional representation which had been established by the Act of Union, giving an equal number of representatives to each province.

The Clear Grits, in effect, drove both Baldwin and La Fontaine out of politics; but although it was the massive George Brown who brought forward the proposals for representation by population in 1853, he was no friend of the Grits. He ranged his own great powers and the weight of the *Globe* against them partly because of their American affiliations, partly because they were prepared to work with the appeasing policies of the Hincks ministry. The Grits therefore never became more than a sectional party, and as Canada moved up to the issues of federation and dominion the old problems of regionalism could never be overlooked. With George Brown as the central figure, with representation by population as the basic issue and with immediate problems arising from railway development and from different concepts of the duty of the state and of private institutions (especially the Church) in the social services, policy became increasingly dependent upon the outcome of a regional struggle in which common desires

for reform or for conservatism were less important than built-in antipathies and suspicions. Education at all levels, from the common schools to the universities, brought religion into politics even more than did the other social services, with western voluntarism ranged against eastern sectarianism as Pio Nono reinvigorated the claims of Roman Catholicism and as the Italian patriot, Gavazzi, staged a tour lecturing on the sins of the Papacy – a tour which brought riots in Quebec and bloodshed and death at Montreal. The ‘Pattern of Disunion’, with which Professor Careless concludes his volume, is etched with a knowledge and understanding which makes the achievement of federation all the more remarkable an episode.

In the Centenary Series the story is taken up by Professor W. L. Morton in *The Critical Years, 1857–1873*.²⁵ As executive editor of the series he has the task of pulling together in one narrative the various threads which have hitherto been dealt with separately, and this he does with a balance and subtlety which is derived from detailed and exhaustive knowledge. From the sectionalism and regionalism of the Atlantic Provinces and the fragmentation of British North America to Union was a tortuous journey, the more difficult because of its brevity; the years from 1857 were indeed critical. It is a triumph to have set out the complexities which led to Union in so clear, full and definitive a manner. But perhaps the judicious balance of this volume may be considered its one defect, especially when it is set alongside the comparable volume by Professor Creighton, *The Road to Confederation*. More polemical, perhaps less balanced than *The Critical Years*, this is a volume which scores by a vigorous prose-style, by skilful portrayal of personalities and by unabashed emphasis on determining factors. For Creighton one of these factors was the American threat which developed as it was accepted that the American Civil War would result, not in two American states, but in a powerful and united federation. Canada’s immunity from external danger ended at the same time as it became clear that the major responsibility for her defence must be borne by herself; she must unite in order to survive. The nature of Canadian federalism, with its emphasis on a paramount national parliament and institutions, is closely argued by Creighton, whereas Morton is more concerned with the (undoubtedly important) sectional and national factors; and although both books are full of thumb-nail personalities the difference between them is that Morton’s men tend to be *rouges* or *bleus*, Grits or Conservatives whereas Creighton’s, playing politics as they are, remain essentially individuals. John A. Macdonald, of course, was always assured of full and understanding treatment from the author of the standard biography, but he does not stand alone, and he is not exempt from criticism. Both books are written by Canadians, largely for Canadians, and although they adequately describe the missions to Westminster and the reactions of British officials and politicians their emphasis is, naturally, on the Canadian drive for federation. Neither assesses (as distinct from recounting) the British contribution as it can be seen, for example, in the firm stand on Confederation by the Derby, the Disraeli and the Gladstone Governments and the personal influence lavished on Howe and Tupper by Buckingham as Colonial Secretary, when it seemed possible that Nova Scotia and New Brunswick would reject the terms of the 1867 British North America Act, or the way in which the Deed of Surrender by which the Hudson’s Bay Company made the prairie provinces and the Northwest Territory available to the Dominion was, at last, forced on both the Company and the Canadian delegates by Granville

²⁵ Toronto: McClelland & Stewart, 1964.

and the Colonial Office, with the British Government acting as intermediary to which the actual surrender of territory should be made.

In all of this the sectional interests of English-speaking and French-speaking Canada demand careful attention, and they get it, for French Canada was almost as much concerned with the west as English-speaking Canada, and it was if anything more concerned to escape from any threat of American domination. The *rouges* and Dorion were indeed fearful of the consequences of a legislative union and of the part which George Brown would certainly play in any centralized federation, but Taché, Langevin and above all Cartier were as convinced in their support of the movement as John A. Macdonald himself. Federation had emphasized the old divisions while offering a new and larger scene on which they could be demonstrated. Military considerations, as in the early days of 'the conquest', had been constantly under review throughout the negotiations for federation, and in the definition and vindication of dominion status which ensued they continued to play a formative part. This is an aspect of Canadian history which is under scrutiny in Desmond Morton's *Ministers and Generals, Politics and the Canadian Militia, 1868-1904*.²⁶ The British North America Act had left Canadian defence, in practice, still dependent on the United Kingdom; and the British policy of reducing garrisons, placing the cost of fortifications on the Dominion Government and relying largely on a locally-recruited militia, kept defence in the forefront of Canadian politics. It is significant that one of Macdonald's first moves was to appoint Cartier to the Department of Militia and Defence; and that Cartier accepted the appointment. The military problems of training and equipping a voluntary force, of assigning its role and of unifying the divergent systems which had been brought into the federation, were difficult enough. But the militia system was as much a political as a military problem. Patronage and social status were involved, the 'colonels' were a cantankerous political lobby, the Militia Department easily became 'a sort of military Tammany Hall' and the militia vote could not be ignored by the Government even on issues far removed from defence. The *Canadian Military Gazette* claimed that the militia had helped to sweep the Mackenzie Government out of office in 1878 and had been responsible for the defeat of the Conservatives in 1896. Aggrieved militia officers were certainly responsible for the defeat of Cartier himself at the polls in 1872. Drill pay for the volunteers penetrated down every dusty road in the Dominion, and sectional interests carried great weight, as for example when the use of the militia to suppress Riel's rebellion discredited the military in Quebec although a sixth of the military budget was spent in that province.

Closely knit into Canadian society though the militia was, it had a British Adjutant General; and a succession of British soldiers found themselves embroiled with politically-minded subordinate officers while at the same time they were engaged with the economics of training and supply and with the long-term issues of defence and involvement. At base the question was whether Canada should aim to develop a force whose sole object was the defence of Canada and should accept that responsibility, whether she should accept a commitment for involvement in Britain's wars and should, in recompense, assume British intervention to protect her if necessary, or whether, arising from this notion, she should organize her own forces for implementing her own foreign policy. The Adjutants General were forced into consideration of these possibilities since they affected the type of force envisaged; ultimately the issue was whether a Canadian contingent should be based on a small permanent corps, trained and

²⁶ Toronto: Toronto University Press, 1972.

equipped to stand alongside British troops, or on a citizen army with Canadian-produced equipment, designed for frontier defence and for riot control. These issues came to a head with the appointment of colonel (later Major-General) Ivor John Caradoc Herbert, of the Grenadier Guards, to command in 1891. A dedicated and experienced soldier with diplomatic training at St Petersburg behind him, Herbert was a Roman Catholic and a fluent French-speaker. But his appointment followed on the dismissal of Middleton who had 'disgraced the uniform of a British officer and hurt our ideal of the English gentleman' by accepting furs which had been looted after Batoche, and the War Office had not consulted Canada over Herbert's appointment. Herbert's reforms, designed to emphasize the role of the permanent force and to train it to British practices, roused general resentment, and he ran into trouble both with his subordinate officers and with the politicians. His period of office was ended when he arranged for a Canadian contingent to be offered for garrison duties in Hong Kong. With a general election pending and with Herbert's reforms cutting into political, social and economic patronage, he was ushered off the scene. His successor inherited much ill-will and little power; but with the victory of the Laurier Liberals in 1896 he saw the appointment of F. W. Borden as Minister of Militia.

A large bluff Nova Scotia country doctor, Borden was already a devoted militia-man with some thirty summer camps behind him. He was to hold office for fifteen years during which the bases for Canada's participation in the 1914-18 war were to be settled, and his determination to suppress patronage and speculation placed him on common ground with Edward Hutton, dynamic, wealthy, well-connected and imaginative, probably the most important British militia commander. Hutton, however, was also intolerant and arrogant, and he made enemies. His object was to reduce the permanent force to the dimensions of an instructional *cadre* and to build up the militia on a voluntary basis to undertake responsibility for initial defence of Canada pending the arrival of imperial troops. Like Dr Coulton, he was strongly impressed with the Swiss citizen army; but whereas Coulton's obsession was a private foible known only in a limited circle, Hutton's admiration for the Swiss was a matter of great political importance. It is not clear from the text what contribution Hutton thought Canada could make to imperial wars; apparently (p. 139) he held views which would entail Canadian involvement, and training to that end. But the South African War struck the Canadian situation when no policy had been agreed, and politics triumphed over doctrines in major and in minor decisions. On the large scene Chamberlain wanted Canada to commit herself to support Britain by taking the initiative in sending troops, while Laurier wanted the War Office to issue an order so that Canada would not be split over the issue. Hutton secretly prepared for the dispatch of an official contingent but discouraged the move to send a body of volunteers largely because this was sponsored by politically-minded officers, in particular by Colonel Sam Hughes, later Lieutenant-General Sir Sam and himself Minister of Militia, an irrepressible imperialist, Grand Master of the Orange Lodge of Canada, editor and owner of the *Victoria Warder*, and Conservative M.P. for Victoria North. The chicanery over commands and appointments amply demonstrated the power which such men as Hughes could wield, and the intransigence and insensibility of which Hutton was capable; he lost the support of Minto as Governor-General and resigned ostensibly for service in Africa but actually over his insistence that his junior officers should not exchange views with Borden without his knowledge and permission. Hutton's was a strange, but easily understood career; it is set out with a nice balance of appreciation and criticism and with human understanding.

Though Hutton left Canada in despair he had left behind a military system with its own pride, and he had done much to eliminate the element of patronage which had been its bane. The service of the Canadians in South Africa did much to stimulate the pride and professionalism which were already evident, and as Borden was called to the 1903 Committee of Imperial Defence and there secured British assent to his Canadian Militia Bill despite the opposition of Minto, the way lay open for him to develop a distinctly national force under a Militia Council. Defence even of Halifax and Esquimalt was given over to Canada as Britain became more engrossed with confrontation with Germany. For her own defence Canada was largely 'on her own' from 1905 onwards. The danger of annexation had receded as a military threat as the rising tide of American prosperity posed the issues of economic absorption. This was a period engrossed by the planning of imperial strategy with concern for India and the Middle East, and for British naval development tied to a highly-trained but comparatively small expeditionary force. The generals who had held office in command of Canada's militia had apparently failed in their attempts to secure a Canadian contingent for such plans. But Canada had accepted responsibility for her own defence, she had her own army in all but name and, to quote from the last paragraph of this illuminating book, 'Canadians had begun to come to terms with the place of political party influence in a mature and democratic system. It was no small achievement.'

It is difficult to decide whether to conclude such a review article by consideration of Creighton's *Canada's First Century* or of P. E. Trudeau's *Federalism and the French Canadians*,²⁷ by the writing of a historian turned politician or of a politician turned historian. Both are stimulating, well-written and informative; both propound historical explanations for the current problems of the Dominion. Either would provide an appropriate conclusion, but there seems some logic in ending an article which begins with Frégault by a consideration of Trudeau.

Creighton emerges clearly as a 'man of 1867'. He sets out with an understanding enthusiasm the purposes of the Fathers of Confederation, with their emphasis on a federal union and the creation of a great new nationality, their drive towards continental status and their determination to create one people and one government, not five peoples and five governments with connexions through a point of authority. This is well put, with authoritative and imaginative descriptions of the institutions, the localities and the personalities involved. Railway policy and railway finance, the Jesuit estates and education, loyalty to the United Kingdom, defence and the Pax Britannica, with Robert Borden claiming a share in the framing of British policy as the reward for accepting responsibility for a contribution towards imperial defence and the consequential repercussions in the internal politics of the Dominion, all are passed in review as Creighton brings Canada up to the Paris Peace Conference, the League of Nations and the International Labour Organization. This is a broad and stimulating summary which will prove invaluable in its breadth and comprehension. Throughout, the fundamental principle is maintained, that history is about people, not about abstractions; and the people come to life – Edward Blake 'with a fine legal mind, a ready and masterful grasp of complex problems, and a superb gift for incisive but prolix argument'; John A. Macdonald exercising power 'like a veteran conductor at the very top of his form, with a superlatively responsive orchestra in front of him'; D'Alton McCarthy, the English-Canadian nationalist antithesis of Honoré Mercier and his Quebec nationalism, 'a warm-hearted impulsive, vigorous Irishman, with crisp hair,

²⁷ Toronto: Macmillan, 1968.

searching eyes, and a moustache curling over a full-lipped mouth'; the best is the picture of Laurier presiding over the boom of the early twentieth century with the confident aplomb of a conjurer pulling an endless succession of rabbits out of a magical hat; it was only too natural for him to assume that he had done it all himself.

But whereas the descriptions are fair and appreciative in the early period even when the policies seem unacceptable, from the First World War onwards the political antipathies are more outspoken. It would be hard to impugn Mackenzie King more bitterly than Creighton does: 'An earnest, puritanical, sanctimonious young man, at once intensely self-centred and ostentatiously public-spirited, King was moved by the two driving ambitions which he always contrived to reconcile, of serving suffering humanity and advancing his own career.' It must be said that although the judgements on the politicians of this period are stringent to the point of censoriousness they are not those of party politics. As Bennett came up to the challenge of the 1930 election he also is assessed, with his simple tastes, severe moral standards and cold, penetrating and censorious eyes. But the Conservative Party which he led to victory against King's Liberals is judged to be 'out of remedies' by 1932, and Bennett's later conversion to a New Deal policy and a spread of government controls is characterized as his 'course in adult education'. Diefenbaker is a Conservative who gets the stick even worse than Bennett; for while Bennett is always a figure to be respected Diefenbaker appears almost as a caricature, a fabulous person, so unusual that St Laurent and the Liberals had no idea how to cope with his absolute sincerity, his vague but splendid visions, his turgid and often ungrammatical prose and his great determination. But Diefenbaker's treatment by the United Kingdom over entry to the European Economic Community is very fairly handled; and the uncertain and embarrassed policies of the Lester Pearson Liberals as, true to the long tradition of Canadian history, they assumed that liberal policies could be based on the support of French-speaking voters, are scathingly indicted. Here it is common ground for censures on Conservatives and Liberals alike that Canada had fallen into the defence system of the Pentagon, but the Liberals' obsession with Quebec, stumbling from one crisis to another in a frantic search for appeasement and failing to realize that the great majority of Quebec nationalists had fixed their hopes, not on a reformed Canada, but on a separate or virtually independent Quebec, leads back to the starting point. Continentalism, for Creighton, has divorced Canadians from their history and left them without the power to fashion a new future for themselves. The social and moral philosophy which had been common in 1867 has broken down, the long association with the United States has given that republic a powerful influence on Canadian national character and the problem of a separatist Quebec has come to obsess the minds of both English and French Canadians. The villain of the piece, above all others, is Mackenzie King, 'the archetypal Canadian continentalist' who 'broke up the Britannic union without even attempting to devise policies for a separate and independent Canada'. Disillusion could hardly be more complete; even Expo 67 is seen as a municipal and international, not as a national event, and no worse time could have been chosen for the dangerous task of a wholesale revision of the Canadian constitution than the centenary year.

Although the verdict on the first 100 years of federation might not be substantially different, the terms and the approach to the problem of P. E. Trudeau are of another order, pointedly cynical, purposeful and constructive. His history is less detailed, more forceful, a politician's history, not a historian's. He does indeed cite Acton (strangely, to English ears, as J. Dalberg-Acton) and his knowledge of history is obviously considerable. But his perceptions greatly surpass his knowledge. In his essay on 'Some

obstacles to Democracy in Quebec' he states the Canadian problem simply and without rancour; French Canadians have not believed in democracy for themselves, and English Canadians have not really wanted it for others. 'Enjoying' democracy with no previous experience at local levels, and without having had to fight for it, the French Canadians adopted the British system piece by piece with the secret design to abuse the system, if need be, to ensure national survival. This they did on many occasions, to such an extent that 'electoral processes for the mass of the people remained mysterious rituals of foreign origin' and a democratic frame of reference simply has not developed for French-Canadian political thinking. But if French Canadians used democracy as a tool of ethnic warfare, English Canadians offered them the example from which to learn. Rightly considering that self-government is the noblest way of regulating social relations among free men, they claimed its benefits for Canada only after serving notice on the French that such benefits were not for members of a subject race. Such an analysis, in an article first published in 1958, reprinted by Mason Wade in 1960 and now appearing in a volume of essays by Trudeau entitled *Federalism and the French Canadians*, may well have produced the result which Trudeau foresaw, and offended all Canadians. But since Pearson handed over leadership of the Liberal Party, and Trudeau came to power, with these views on the record, it is clear that his rough and caustic historical analysis has proved acceptable as a starting-point rather than as a conclusion.

The bones of Trudeau's analysis appear, often with the same basic narrative, in other essays – on the 'Practice and Theory of Federalism', on the 'New Treason of the Intellectuals', in the current volume – and the reason why his writings did not entail political suicide lies partly in their shrewd and cynical power, partly in the acceptance of the narrative by a broad cross-section of Canadians, partly in the support of a considerable group of scholars who range themselves behind Mason Wade, supplying the detailed narrative and statistical analysis which Trudeau cannot afford if he is to keep his themes moving. It is significant that the important essay on 'Some Obstacles to Democracy in Quebec' should have been reprinted in Wade's *Canadian Dualism*.²⁸ For in his 'New Treason of the Intellectuals' and in his 'Federalism, Nationalism and Reason' (and elsewhere) Trudeau deals devastatingly with the history and the concept of nationalism, exposes the folly of correlating nationhood with sovereignty, and pins his faith to federalism as a product of reason in politics. His federalism, however, is something very different from the federalism of the Fathers of Confederation and of Creighton. For him, the future lies not with the creation of a nation, the predominance of the Dominion over the provinces, but in the separation of state from nation and the development in Canada of a pluralistic and polyethnic society. This, of course, is something much wider than the simple bi-culturalism of Mason Wade and his followers, just as Wade's bi-culturalism is something wider than Quebec separatism; and it is doubtful if the Canadian electorate has yet appreciated the breadth of the Prime Minister's views.

But it is clear that there is enough in the experience of the Dominion, and in the historical writing which has greeted the Centenary, to provide substantial support for Trudeau's view that the Fathers of Confederation evolved a constitution which was as sensible as could have been devised in the circumstances of 1867; but that they founded their constitution on empirical common sense, not on 'principles, ideals or other frills'. The unifying and expanding policies of the Dominion, with the under-

²⁸ Toronto: Toronto University Press, and Quebec: Presses universitaires Laval, 1960.

lying purpose of making everyone into 'good, clean, unhyphenated Canadians' have, however, driven Quebec in on itself and have produced a situation upon whose defects Trudeau and Creighton would be in agreement; they would be in agreement, too, in concluding that the reason for the defects is that the Dominion has neglected the wisdom of the Fathers of Confederation. But while Creighton would emphasize departures from the unifying purposes and concessions to sectionalism and to bi-culturalism, Trudeau would emphasize departures from empirical common sense in the interest of theories and nationalism.

The other immediately apparent difference is that whereas Creighton looks to the past and despairs of the future Trudeau looks to the future and despairs of the past. 'A plague o' both their houses' might well be his cry as he passes his history in summary review, and not unnaturally his history is subject to criticism at almost every step, even though it carries 'the smell of truth' with it. His brief exposure of nationalism, for example, is central to his beliefs and policies, and is shrewd and realistic. But, as set out in the sections headed 'The Historical Approach' and 'The Origin of Nationalism' in the 'New Treason of the Intellectuals' it invites challenge and criticism at every stage. Again, the simple statement that 'It is a matter of record that the purpose of the Royal Proclamation of 1763 was complete assimilation of the French Canadians', in 'Some Obstacles to Democracy in Quebec', is a good enough stick to beat a dog with; but the fine analysis of the way in which the 'Rule of the Generals' worked to preserve the bases of French-Canadian society, as set out by Professor Neatby, must be ignored if Trudeau's brief and contentious summary of the period of the conquest is to be accepted. Once more, there is an essential truth in the brusque contentious summary. But, disconsolate though the doyen of Canadian historians may seem now to be, it is proper that the centenary year should have produced such a wealth of historical writing. For only by such work do the raw edges of the politician's declamations get smoothed down to the empirical common sense which can be the base for future policy.

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